

2.

CASE #	CASE NAME	HEARING NAME
CVRI2302554	CHICO vs GODOY MARTINEZ	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

The court does not consider the untimely opposition.

Nevertheless, **the motion to strike is denied.**

This motion comes after a ruling from over two years ago when, on June 11, 2024, the court granted leave to amend as to the first cause of action for fraud, with twenty (20) days leave to amend. However, there were no appearances on that date by either plaintiff or the moving defendant Alisia Godoy Martinez aka Alisia Godoy, an individual. The court ordered the moving party to give notice. The court has notice that the requisite notice was given. “When a demurrer to any pleading is sustained or overruled, and time to amend or answer is given, the time so given runs from the service of notice of the decision or order, unless the notice is waived in open court, and the waiver entered in the minutes.” (Civ. Proc. Code, § 472b.) Since defendant did not give notice as ordered by the court, the time to amend did not start. (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* §7:135 (Rutter Group 2026).) As such, the first amended complaint was timely filed on July 30, 2024, and the motion to strike is denied.

(Moving party was defaulted on March 20, 2025, almost a year after the first amended complaint was filed; on May 12, 2026, that the entry of default was set aside, and this motion to strike was filed.)

Moving party is ordered to file and serve its answer within ten (10) days from this order on July 13, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404633	DAVALOS vs WASTE MANAGEMENT COLLECTION AND RECYCLING, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR MARGARITO DAVALOS

Tentative Ruling:

The motion to be relieved as counsel is granted. Counsel is relieved as counsel of record for client effective upon the filing of the proof of service of the signed order being served upon client. If the proof of service is not filed, counsel will remain counsel of record for all purposes related to this action.